
FOUNDERS' AND SHAREHOLDERS' AGREEMENT

JAM WORKS INC. (the “Corporation”), a corporation incorporated under the *Canada Business Corporations Act* (the “CBCA”)

THIS AGREEMENT is made effective as of the date on which it is last signed by the parties below (the “Effective Date”),

AMONG:

1. **JORDAN TAYLOR**, of London, Ontario (“Jordan”)
2. **ABDULRAHMAN KASSEM**, of Calgary, Alberta (“Abdul”)
3. **MIGUEL ANGEL SEGURA**, of London, Ontario (“Miguel”)

(each a “Founder” and collectively the “Founders”)

AND:

4. **JAM WORKS INC.**, a corporation incorporated under the CBCA (the “Corporation”)

RECITALS:

A. The Founders are all of the shareholders of the Corporation.

B. The Founders intend this Agreement to be a **unanimous shareholder agreement** within the meaning of section 146 of the CBCA (a “USA”), and to restrict the powers of the directors to manage the business and affairs of the Corporation to the extent set out in Article 6.

ARTICLE 1 — DEFINITIONS

In this Agreement:

- **“Board”** means the board of directors of the Corporation.
- **“Cause”** means, with respect to a Founder: (a) fraud, theft, or embezzlement involving the Corporation; (b) intentional and material breach of this Agreement or of the Founder’s confidentiality or IP obligations, which breach (if capable of remedy) remains unremedied 30 days after written notice describing it; (c) conviction of an indictable offence that materially harms the Corporation’s business or reputation; or (d) carrying on, or being employed or engaged by, a business that directly competes with the Business, without the prior written consent of the other Founders. “Cause” does **not** include poor performance, reduced availability, disagreement in good faith, or resignation with Notice.

- **“Business”** means the development and commercialization of artificial-intelligence software products, including the voice-AI dispatch product currently branded “Dispango” and the document-AI product currently branded “CoverCraft”, and any other business the Corporation carries on from time to time.
- **“Disability”** means a physical or mental condition that has prevented a Founder from performing substantially all of their duties to the Corporation for 6 consecutive months, or 9 months (whether or not consecutive) in any 18-month period.
- **“Fair Market Value” or “FMV”** means the value determined under the Valuation Mechanism in Article 8.
- **“Notice”** means at least 30 days’ prior written notice to the Corporation and the other Founders.
- **“Shares”** means common shares in the capital of the Corporation, and any shares or securities into which they are converted, subdivided, or exchanged.
- **“Transfer”** means any sale, gift, assignment, pledge, encumbrance, or other disposition, direct or indirect.

ARTICLE 2 — SHARE OWNERSHIP AND ISSUANCE

2.1 On the date of this Agreement, the Corporation shall issue, and the Founders shall subscribe for, common shares as follows, at a subscription price of \$0.00001 per share:

Founder	Shares	Subscription price
Jordan	1,000,000	\$10.00
Abdul	1,000,000	\$10.00
Miguel	1,000,000	\$10.00

2.2 Each Founder confirms the subscription price has been paid to the Corporation in cash.

2.3 The Founders acknowledge that their respective holdings are equal (one-third each of all issued Shares) as of the date of this Agreement.

ARTICLE 3 — REVERSE VESTING

3.1 **Vesting schedule.** Each Founder’s Shares vest as to 1/48th of the total on the last day of each calendar month following the Vesting Start Date, such that all Shares are fully vested 4 years after the Vesting Start Date. There is no cliff.

3.2 **Vesting Start Date** means **April 13, 2026** (reflecting that substantial work on the Business began approximately three months before the date of this Agreement).

3.3 **Effect of ceasing to be active.** If a Founder ceases to be actively engaged in the Business (whether by resignation, removal, death, Disability, or otherwise) (the date of such cessation, the “Departure Date”), vesting stops on the Departure Date and:

- a. the Corporation has the option, exercisable within 90 days of the Departure Date, to repurchase all of that Founder’s **unvested** Shares at the original subscription price (\$0.00001 per share); and
- b. the departing Founder’s **vested** Shares are dealt with under Article 4 (Leaver Provisions).

3.4 **Acceleration on acquisition (double trigger).** If (i) there is a sale of all or substantially all of the Corporation’s shares or assets, and (ii) within 12 months after it, a Founder’s engagement is terminated by the acquirer without Cause, then all of that Founder’s unvested Shares vest immediately.

3.5 The Founders shall cause share certificates (or the securities register) to bear a legend referring to this Article.

ARTICLE 4 — LEAVER PROVISIONS

4.1 **Good Leaver** means a Founder whose engagement ceases due to: death; Disability; removal or termination by the Corporation without Cause; or resignation with Notice.

4.2 **Bad Leaver** means a Founder whose engagement ceases due to: termination for Cause; or resignation without Notice.

4.3 **Good Leaver terms.** A Good Leaver (or their estate) **keeps their vested Shares**, subject to the Transfer restrictions in Article 5. The Corporation and the remaining Founders additionally have the option (but not the obligation), exercisable within 90 days of the Departure Date, to purchase all or part of the Good Leaver’s vested Shares at FMV.

4.4 **Bad Leaver terms.** The Corporation and the remaining Founders have the option, exercisable within 90 days of the Departure Date, to purchase all of a Bad Leaver’s vested Shares at FMV. A Bad Leaver must cooperate with the exercise of this option.

4.5 **Payment terms.** Any purchase under this Article may, at the purchaser’s election, be paid in up to 8 equal quarterly instalments over 24 months, with interest at the Bank of Canada policy rate plus 2% on the outstanding balance.

4.6 **Family-law event.** If, as a result of the breakdown of a Founder’s marriage or common-law relationship, a spouse or former spouse of a Founder becomes entitled under family-law legislation or a court order to acquire, or acquires, any of that Founder’s Shares, the Corporation first, then the other Founders pro-rata, have the option, exercisable within 90 days of receiving written notice of

that entitlement, to purchase those Shares at FMV, payable under 4.5. Each Founder shall use reasonable efforts to ensure their Shares are not divided in specie to a spouse (for example, by satisfying any family-property entitlement out of other assets).

4.7 Insolvency event. If a Founder becomes bankrupt or insolvent, or their Shares become subject to seizure or a creditor's enforcement, the Corporation first, then the other Founders pro-rata, have the option, exercisable within 90 days, to purchase that Founder's Shares at **FMV** (not a discount), payable under 4.5. For certainty, this option is a purchase at fair value and is not intended to remove value from the Founder or their creditors.

ARTICLE 5 — TRANSFER RESTRICTIONS

5.1 General prohibition. No Founder may Transfer any Shares except in accordance with this Agreement and the Corporation's articles.

5.2 Right of First Refusal (ROFR). A Founder wishing to Transfer Shares to any person (a "Proposed Transfer") must first deliver written notice to the Corporation and the other Founders stating the number of Shares, the price, and the proposed transferee. The Corporation first, then the other Founders pro-rata, have 30 days to elect to purchase all (but not less than all) of those Shares on the same terms. Only if they decline may the Founder complete the Proposed Transfer, on terms no more favourable to the transferee, within 60 days, and only if the transferee first signs a joinder to this Agreement.

5.3 Tag-along. If a Founder proposes to Transfer Shares to a third party and the ROFR is not exercised, each other Founder may elect to sell a pro-rata portion of their own Shares to that third party on the same terms, and the Proposed Transfer may not complete unless the third party purchases the tagging Founders' Shares as well.

5.4 Drag-along. If Founders holding at least two-thirds of all issued Shares accept a bona fide arm's-length offer from a third party to purchase all of the issued Shares, they may require the remaining Founder(s) to sell on the same terms, provided that: (a) the price is not less than FMV determined under Article 8, or the offer follows a competitive process; (b) consideration is the same for all Founders per Share; and (c) the third party is not a person related to (within the meaning of the *Income Tax Act* (Canada)) any Founder voting in favour.

5.5 Permitted exceptions. Transfers under Articles 3, 4, or 7 (vesting repurchase, leaver buyout, death/disability) are not subject to the ROFR or tag-along.

ARTICLE 6 — GOVERNANCE

6.1 Board. The Board consists of the three Founders for so long as each remains actively engaged in the Business. A Founder who ceases to be actively engaged (Article 3.3) is deemed to resign from the

Board and from all offices of the Corporation effective on their Departure Date, and shall sign any documents needed to give effect to this, but retains the voting rights attached to any Shares they continue to hold as a shareholder.

6.2 Ordinary decisions. Except as set out in 6.3, all decisions of the Board and the shareholders are made by simple majority.

6.3 Unanimous decisions. The following require the written approval of all three Founders:

- a. issuing shares, options, or securities convertible into shares to any Founder or any person related to a Founder;
- b. amending the articles or by-laws of the Corporation, or this Agreement;
- c. selling all or substantially all of the Corporation's assets or business, other than pursuant to Article 5.4 (drag-along);
- d. any contract or payment between the Corporation and a Founder (or a person related to a Founder) other than compensation approved under 6.4, with a value over \$5,000;
- e. incurring indebtedness over \$25,000 in the aggregate, or granting security over the Corporation's assets;
- f. winding up or dissolving the Corporation; and
- g. fundamentally changing the nature of the Business.

6.4 Founder compensation. Founder salaries, contractor fees, and bonuses are set by the Board by simple majority, provided that any change to a Founder's own compensation is decided without that Founder's vote counting.

6.5 Dividends. Dividends are declared by the Board by simple majority and are paid equally per Share. Nothing in this Agreement obliges the Corporation to declare a dividend.

6.6 Pre-emptive rights. Before issuing new Shares or securities to any person, the Corporation shall offer each Founder the right to purchase their pro-rata portion on the same terms, exercisable within 15 days. This right does not apply to issuances under an employee option plan approved under 6.3(a) or to a bona fide equity financing approved by the Board.

6.7 Unanimous shareholder agreement. The Founders declare this Agreement to be a unanimous shareholder agreement under section 146 of the CBCA. To that extent, and to the extent of the restrictions in 6.3, the power of the directors to manage the business and affairs of the Corporation is restricted, and the Founders, as shareholders, assume the corresponding rights, powers, duties, and liabilities of directors. This Agreement, and the rights and restrictions in it, bind every present and future holder of Shares, whether or not that holder signs a separate joinder.

ARTICLE 7 — DEATH AND DISABILITY

7.1 On the death or Disability of a Founder, the Corporation first, then the remaining Founders pro-rata, have the option, exercisable within 120 days, to purchase all of the affected Founder's Shares (vested only; unvested Shares are repurchased under Article 3) at FMV.

7.2 Payment may be made in up to 8 equal quarterly instalments over 24 months, with interest at the Bank of Canada policy rate plus 2%.

7.3 The Founders agree to review, within 12 months of the Corporation achieving meaningful recurring revenue, whether to put in place corporate-owned life insurance on each Founder to fund the purchase in 7.1, and to revisit this Article with counsel at that time.

7.4 **Insurance proceeds excluded from value.** If the Corporation ever holds life or disability insurance on a Founder, the proceeds of that insurance are **not** included in determining the FMV of that Founder's Shares under Article 8. The proceeds are a source the Corporation may use to *pay* for the Shares, not an asset that increases their price.

ARTICLE 8 — VALUATION MECHANISM

8.1 Wherever this Agreement requires Fair Market Value, it is determined by the first of the following that applies:

- a. **Agreed Value certificate.** The Founders may, at any time (and are encouraged to do so at least annually, at the fiscal year-end), unanimously sign a written certificate stating the agreed value of the Corporation. If a certificate has been signed within the 12 months preceding the event requiring a valuation, the value it states (adjusted pro-rata for the Shares being valued) is the FMV, final and binding.
- b. **Agreement at the time.** Failing (a), the interested parties attempt to agree a value in writing within 15 days.
- c. **Independent valuation.** Failing (a) and (b), FMV is determined by a single Chartered Business Valuator (CBV), independent of all parties, jointly appointed by the parties or, failing agreement on the appointment within a further 15 days, appointed on application to the CBV Institute (or its successor). The CBV's written determination is final and binding, values the Shares as a going concern **without** minority or marketability discounts, and the CBV's fees are borne equally by the parties to the determination.

ARTICLE 9 — DISPUTE RESOLUTION AND DEADLOCK

9.1 **Escalation ladder.** Any dispute under this Agreement, or any deadlock of the Board or shareholders, is resolved as follows: (a) good-faith negotiation among the Founders for 15 days; then (b) mediation before a single mediator in Calgary, Alberta for up to 30 days; then (c) final and

binding arbitration by a single arbitrator in Calgary under the *Arbitration Act* (Alberta), with the arbitrator's costs following the outcome.

9.2 Fundamental deadlock. If a matter listed in 6.3 (unanimous matters) remains deadlocked after mediation, any Founder may serve a "Buy-Sell Notice" electing to sell all of their Shares, whereupon the Corporation and the other Founders have the option, for 60 days, to purchase those Shares at FMV under Article 8, payable under the instalment terms in 4.5. For clarity, no Founder can be **forced** to sell under this Article — it provides an exit at fair value, not an expulsion.

9.3 No Founder shall commence court proceedings except to enforce an arbitral award or seek urgent injunctive relief.

ARTICLE 10 — INTELLECTUAL PROPERTY AND CONFIDENTIALITY

10.1 Assignment. Each Founder hereby assigns to the Corporation all right, title, and interest in all intellectual property that the Founder creates, alone or jointly, that relates to the Business, whether created before or after the date of this Agreement — including the pre-incorporation work assigned under the *Pre-Incorporation IP Assignment Agreement* of even date, which the Founders confirm remains in effect.

10.2 Moral rights. Each Founder waives all moral rights in such intellectual property in favour of the Corporation.

10.3 Confidentiality. Each Founder shall keep confidential, and use only for the Business, all non-public information of the Corporation, during and after their involvement with the Corporation.

10.4 Non-solicitation. For 12 months after ceasing to hold Shares, a Founder shall not solicit the Corporation's employees or contractors to leave, or solicit its customers to move their business to a competing product, using the Corporation's confidential information.

10.5 No broad non-compete. The Founders deliberately do not impose a general non-competition covenant, relying instead on the definition of Cause (1), confidentiality (10.3), and non-solicitation (10.4).

ARTICLE 11 — GENERAL

11.1 Term. This Agreement terminates on the earlier of: written agreement of all Founders; one person becoming the sole holder of all Shares; or the closing of a bona fide equity financing or share sale in which it is superseded by a replacement shareholders' or investors' agreement.

11.2 Governing law. Alberta and the federal laws of Canada applicable in Alberta.

11.3 Entire agreement. This Agreement, together with the Pre-Incorporation IP Assignment Agreement, is the entire agreement among the parties regarding its subject matter.

11.4 **Independent legal advice.** Each Founder acknowledges having had the opportunity to obtain independent legal advice before signing, and signs voluntarily.

11.5 **Amendment.** Only in writing, signed by all parties.

11.6 **Counterparts and electronic signatures.** This Agreement may be signed in counterparts, each of which is an original and all of which together form one agreement. The parties agree that electronic signatures (including e-signature platforms and scanned or PDF signatures) are valid, binding, and have the same effect as original signatures, consistent with the *Electronic Transactions Act* (Alberta) and the *Personal Information Protection and Electronic Documents Act* (Canada).

11.7 **Effective date.** This Agreement is dated, and takes effect, as of the date the Corporation first issues Shares to the Founders under Article 2, so that the shareholding and this Agreement come into existence together.

SIGNATURES

JORDAN TAYLOR	Date
ABDULRAHMAN KASSEM	Date
MIGUEL ANGEL SEGURA	Date
JAM WORKS INC., by its authorized signatory	Date